U.S. Department of Health and Human Services

Office of Inspector General
ATTN: Whistleblower Protection / Investigations Division
330 Independence Avenue, SW
Washington, DC 20201

Date: October 7, 2025

From:
Kevin Turnage
1003 E Pinto Ct
Gilbert, AZ 85296
(901) 220-8664
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Subject: Request for Investigation – Retaliation, Misuse of Federal Authority, and Fraudulent Conduct by Indian Health Service Officials

Dear Inspector General,

I respectfully submit this complaint for formal review by the **U.S. Department of Health and Human Services (HHS) Office of Inspector General (OIG)**. This complaint details evidence of **fraudulent misuse of government authority, retaliation against a federal whistleblower, and waste of federal funds** by senior officials at the **Indian Health Service (IHS) – Phoenix Indian Medical Center (PIMC)**.

These actions constitute violations of:

- **5 U.S.C. § 2302(b)(8)–(9)** – prohibited personnel practices (whistleblower retaliation);
- **5 U.S.C. § 6329b** – unlawful extension of investigative leave;
- **5 C.F.R. § 2635.101 and § 2635.502** – ethical standards and conflicts of interest;
- **44 U.S.C. § 3101 et seq.** – Federal Records Act (failure to preserve and protect federal records); and

- **31 U.S.C. §§ 1341–1342** – Anti-Deficiency Act (improper expenditure of appropriated funds during a lapse in appropriations).

I am a **confirmed federal whistleblower** under **OSC Case No. DI-16-2511**, which involved substantiated disclosures of violations of federal law, rule, and regulation within the **U.S. Department of Veterans Affairs**. A copy of the **OSC letter to the President of the United States** regarding that case is enclosed with this submission. This history demonstrates my established record of making protected disclosures under **5 U.S.C. § 2302(b)(8)** and further supports that my current disclosures and resulting retaliation fall squarely under whistleblower protection statutes.

I request that the **OIG open an independent investigation** into these matters and coordinate with the **U.S. Office of Special Counsel (OSC)**, where this case is currently pending under **Case No. MA-25-004957**, investigated by **Attorney Emily Drake**.

Respectfully,

Kevin Turnage

Complainant / Federal Employee

CC:
The Honorable **Mark Kelly**, U.S. Senator (AZ)
The Honorable **Ruben Gallego**, U.S. Senator (AZ)
The Honorable **Andy Biggs**, U.S. Congressman (AZ-05)

SECTION I – COMPLAINT NARRATIVE

("Describe the fraudulent action in your own words")

The fraudulent action involves a coordinated and retaliatory misuse of federal authority by senior officials at the **Indian Health Service (IHS) – Phoenix Indian Medical Center (PIMC)**, including **Debra Louise Ward Lund (Chief Executive Officer)**, **Kathy Dill (Chief Operating Officer)**, **Clinton Pope (Chief Quality Officer)**, **Naomi Hixson (Compliance Officer)**, **Candace Lee (Chief Nursing Officer)**, **Brandi Benjamin (Assistant Chief Nursing Officer)**, and **Jason White (Nurse Consultant)**.

These individuals collectively engaged in **fraudulent and retaliatory conduct** by fabricating and misrepresenting the basis for a *"hostile work environment"* investigation against me immediately following my **protected disclosures** of violations of federal law, regulation, and IHS policy by Chief Quality Officer **Clinton Pope**. The investigation was initiated not in good faith but as a **pretext to punish and discredit me as a federal whistleblower** and to conceal the misconduct I reported.

Specifically:

- The officials **knowingly recharacterized my lawful protected disclosures**—involving violations of patient care policy, compliance breaches, and misuse of federal systems—as "hostile" or "unprofessional" conduct.
- They **collaborated to misuse administrative and personnel authorities**, fabricating misconduct and creating false documentation to justify my removal from duty.
- I was **placed on Administrative Leave on June 27, 2025**, then **Investigative Leave on July 14, 2025**, and the leave was **illegally extended on August 26, 2025, for an additional 31 days**, exceeding the statutory 30-day limit set by **5 U.S.C. § 6329b (Administrative Leave Act of 2016)**.
- The extension was issued **without the required written justification or higher-level supervisory review**, rendering it procedurally invalid.
- **At the time I was placed on paid administrative and investigative leave, there was no legitimate investigation to conduct.** The agency expended federal funds and staff time to pay for my removal from duty and to sustain an investigation that did not exist until it **retroactively labeled my whistleblower activity as "hostile behavior."**
- The **investigation itself was fraudulent**: I was **not informed of its purpose until the call began on September 25, 2025**, and the **meeting invitation was sent after the scheduled start time (9:06 a.m.)**, depriving me of notice or the ability to prepare.
- **Naomi Hixson**, the Compliance Officer who was **a subject of my disclosures**, acted as the **investigator**, creating a direct **conflict of interest** under **5 C.F.R. § 2635.502(a)**.
- **Candace Lee (CNO)**, **Brandi Benjamin (ACNO)**, and **Jason White (Nurse Consultant)** participated in or endorsed the retaliatory process by supporting or providing false statements that sustained the fabricated allegations.

Collectively, these acts constitute **fraudulent misuse of investigatory and personnel authorities** to retaliate against a whistleblower, suppress evidence of legal violations, and mislead oversight entities.

SECTION II – SYSTEMIC MISCONDUCT AND PROGRAM INTEGRITY RISKS

This is not an isolated workplace dispute. It represents a **pattern of retaliation, concealment, and misuse of federal resources** with broader implications for program integrity and patient safety.

Misuse of Federal Funds and Time

The agency expended **federal salary and benefits funds** to maintain me on **paid administrative and investigative leave for 105 calendar days (75 workdays)** when no legitimate investigation existed.

- **Span:** June 27 – October 9, 2025 = **105 calendar days / 75 workdays**
- **Per-workday loaded cost:** $756.63 (salary, uniform, and employer benefits)
- **Total cost (75 workdays):**
  - Pay + uniform: **$39,684.15**
  - Employer benefits: **$17,063.40**
  - **Estimated taxpayer cost: $56,747.55**

This figure **does not include additional staff hours and federal salary costs** expended to sustain or justify this fraudulent action. The leave itself, coupled with the fabricated investigation, represents **waste, fraud, and abuse of appropriated funds** under federal oversight standards.

Improper Expenditures During Lapse in Appropriations

While numerous federal employees — including members of the **HHS Office of Inspector General** and other "non-excepted" personnel — are **furloughed without pay** due to the current **lapse in appropriations**, I continue to **receive full pay to remain at home** under a retaliatory and baseless investigative leave.
This inconsistent use of funds demonstrates **gross mismanagement and abuse of authority**, as the agency is expending taxpayer dollars to sustain a retaliatory personnel action while critical federal oversight operations are suspended for lack of funding.
Such conduct appears inconsistent with the **Anti-Deficiency Act (31 U.S.C. §§ 1341–1342)** and federal **Continuing Resolution limitations** on expenditures during shutdown periods.

Breakdown of Statutory and Regulatory Oversight

During my absence, there is **no one assigned or qualified to perform my duties**, which include **reviewing, drafting, and approving hospital policies for compliance with federal statutes and regulations**.
This failure means that **PIMC currently lacks oversight to ensure legal, statutory, and**

regulatory compliance in policy development and implementation.
The agency's retaliatory decision to remove me from duty therefore not only wasted taxpayer resources but also **created an ongoing compliance gap** that places the hospital and the federal government at risk of **systemic violations of law and patient safety regulations**.

Additional Program Integrity Risks

- **Obstruction of Oversight:** Quality and compliance data have been withheld or manipulated to prevent detection of noncompliance.
- **Federal Records Act Violations:** Leadership continues to use **personal cell phones and private messaging platforms** for official government business, risking spoliation of federal records in violation of **44 U.S.C. § 3101 et seq.**
- **Patient Safety and Public Health Risks:** The retaliatory suppression of compliance reports may have delayed corrective action for patient-care deficiencies, in violation of **42 C.F.R. Part 482**.

I respectfully request that the **OIG:**

1. **Open an independent investigation** into the retaliatory and fraudulent actions of the officials named above;
2. **Audit the use of administrative and investigative leave** for compliance with **5 U.S.C. § 6329b**;
3. **Examine whether federal funds, personnel time, or systems** were misused to facilitate retaliation;
4. **Assess the legal compliance risk created by the absence of any qualified official to review hospital policies during my leave**;
5. **Review the legality of expenditures made during the lapse in appropriations**;
6. **Coordinate with OSC** to ensure consistent findings; and
7. **Refer the responsible officials for disciplinary and administrative sanctions** under **5 U.S.C. § 1215**.

SECTION III – TIMELINE OF EVENTS

Date	Action / Event
June 27, 2025	Placed on **Administrative Leave** for 10 days.
July 14, 2025	Changed to **Investigative Leave** (30 days).
August 26, 2025	**Extension of Investigative Leave** issued for **31 days**, exceeding 30-day legal limit; no written review completed as required by **5 U.S.C. § 6329b**.
September 25, 2025 (9:00 a.m.)	Interview for alleged "hostile work environment" held. Invitation sent **after start time (9:06 a.m.)**; purpose undisclosed.
October 9, 2025	End of current investigative leave. Further extension would be **unlawful** absent statutory review.

SECTION IV – WHO ELSE KNOWS ABOUT THE MISCONDUCT

- **U.S. Office of Special Counsel (OSC)** – Case No. MA-25-004957, Attorney Emily Drake.
- **HHS Office of General Counsel (OGC)** – Copied on all preservation and litigation hold notices.
- **IHS Human Resources and Employee Relations** – Processed unlawful leave extensions.
- **IHS Headquarters and Area Office Compliance Officials** – Received my prior compliance reports.
- **Union Representative and PIMC Staff** – Aware of retaliation and fabricated allegations.
- **Federal Court (D. Ariz.)** – Case No. 2:25-cv-03367-PHX-CDB; related EEOC Case No. 2024004239.

SECTION V – ATTACHMENTS / EVIDENCE INDEX

1. **Supplemental Notice to the U.S. Office of Special Counsel (Oct 6, 2025)**
2. **Attachment 1 – Legal Summary of Protections**
3. **Attachment 2 – Expanded Interview Summary and Legal Analysis**
4. **Attachment 3 – Summary of Violations of Federal Law**
5. **Procedural Summary – September 25, 2025, Interview**
6. **Interview Question & Legal Violation Reference Table**
7. **Copy of OSC Transmittal Email (October 6, 2025)**
8. **OSC DI-16-2511 Letter to President**
9. **OSC DI-16-2511 Letter from OSC confirming complaint**

CERTIFICATION

I certify that the information provided herein is true and accurate to the best of my knowledge and belief and that all statements are made in good faith pursuant to **18 U.S.C. § 1001**.

Signature: _____
Date: October 7, 2025

Attachment 1 – Legal Summary of Protections

Kevin Dean Turnage
OSC Case No. MA-25-004957
Date: October 6, 2025

Legal Summary of Protections – Whistleblower and Employee Rights

The following federal statutes and regulations protect my right to make disclosures, communicate with coworkers, and report violations of law, policy, or workplace conditions without reprisal:

1. **Whistleblower Protection Act (WPA), 5 U.S.C. § 2302(b)(8)**
   Protects disclosures of violations of law, rule, or regulation; gross mismanagement; gross waste of funds; abuse of authority; or substantial and specific dangers to public health or safety.
   Protection applies **to any disclosure made to any person**, regardless of supervisory chain.
2. **Whistleblower Protection Enhancement Act of 2012 (WPEA)**
   Clarifies that protected disclosures include those made in the normal course of duties or to a supervisor.
   Prohibits retaliation through investigations, reassignments, or unfounded accusations.
3. **Federal Service Labor-Management Relations Statute, 5 U.S.C. § 7102**
   Grants employees the right to "form, join, or assist" a labor organization and to **communicate with other employees** about workplace matters without interference or reprisal.
   As a **former Union Representative**, my professional communications concerning ER/LR and workplace conditions are expressly protected.
4. **Prohibited Personnel Practices, 5 U.S.C. § 2302(b)(9)**
   Protects employees from retaliation for exercising any appeal, grievance, or complaint right, or for assisting others in doing so.
5. **Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e-3(a)**
   Prohibits retaliation against employees who oppose or report unlawful practices or assist others in doing so.
6. **Constitutional Protections – First and Fifth Amendments**
   Safeguard communications on matters of public concern and prohibit arbitrary or discriminatory enforcement of agency policy.

Summary:
At all times, my communications and disclosures have remained within these legal protections. I have not disclosed any confidential, privileged, or restricted information. My discussions and advice to colleagues regarding ER/LR or policy matters were lawful, professional, and protected under federal statute.

/s/ Kevin Dean Turnage
Date: October 6, 2025

Attachment 2 – Expanded Interview Summary and Legal Analysis

Kevin D. Turnage

OSC Case No. MA-25-004957

Interview Date: September 25, 2025

Investigators: Naomi Hixson (Compliance Officer) and Shawna Samuel

A. Harassment / Hostile-Work-Environment Allegations (Questions 1–10 of Affidavit 1)

Issue: Questions accused Mr. Turnage of creating a hostile work environment by sending emails alleging that his supervisor violated federal law.

Legal analysis:

- **5 U.S.C. § 2302(b)(8)** – His emails constitute protected disclosures of violations of law and patient-safety standards. Questioning him for those disclosures converts a whistleblowing act into a disciplinary inquiry and therefore is **reprisal**.
- **29 C.F.R. § 1614.101(b)** – Federal agencies must maintain workplaces free from reprisal for protected EEO or whistleblower activity.
- **5 C.F.R. § 2635.101(b)(14)** – Investigators must act impartially; framing protected activity as "harassment" violates this ethical standard.
- **First Amendment & Fifth Amendment (due-process)** – Characterizing protected speech as misconduct chills lawful disclosure and deprives him of notice and neutrality.

B. "Inflammatory Language," "Defamation," or "Intimidation" Allegations

(Questions 3(c)–(g))**

- These questions attempt to redefine factual compliance emails as "defamatory."
- Because his communications were job-related and made through proper channels, the inquiry infringes his rights under **5 U.S.C. § 2302(b)(8)** and violates **EEO anti-reprisal regulations (29 C.F.R. § 1614.101)**.
- A biased Compliance Officer questioning him about her own subject-matter area also violates **5 C.F.R. § 2635.502(a)** (conflict of interest).

C. Policy and Workflow Questions (Affidavit 2, Q6–Q10)

Issue: Investigators asked why he escalated concerns, used the term "reject," or bypassed his supervisor.

Legal analysis:

- **5 U.S.C. § 2302(b)(8)** – Raising compliance issues to headquarters after local inaction is a protected disclosure.
- **Joint Commission/ CMS requirements** incorporated into his position description required him to report patient-safety violations; punishing him for doing so violates public-policy and ethical obligations.
- **Constructive demotion:** When duties were removed after these disclosures (Affidavit 1 Q3(d)), that constitutes a **personnel action** under **5 U.S.C. § 2302(a)(2)(A)(iii)** and a **constructive demotion** under **MSPB precedent** (*Brown v. DOJ*, 715 F.2d 662 (Fed. Cir. 1983)).

D. Use of Personal Equipment / Non-IHS Email (Affidavit 2 Q1–Q4)

Issue: Questions implied misuse of personal devices.

Legal analysis:

- No policy violation exists when leadership routinely uses personal phones. Selective enforcement amounts to **disparate treatment** under **Title VII, 42 U.S.C. § 2000e-2(a)**.
- If used in retaliation, such questioning is a **prohibited personnel practice** under **5 U.S.C. § 2302(b)(8)**.
- Failure to apply standards uniformly also breaches **5 C.F.R. § 2635.101(b)(8)** (impartiality).

E. Crowdfunding / Ethics Questions (Affidavit 2 Q11–Q12)

Issue: Questions alleged violation of ethics rules for identifying himself as a federal employee in a GoFundMe campaign.

Legal analysis:

- He complied with **5 C.F.R. § 2635.702(a)** once Ethics directed removal.
- Re-questioning after compliance constitutes **harassment in reprisal** for protected disclosures under **5 U.S.C. § 2302(b)(9)**.

F. Providing ER/LR or EEO Information (Affidavit 2 Q13–Q14)

Issue: Investigators asked whether giving coworkers guidance on ER/LR or EEO matters violated law.

Legal analysis:

- **5 U.S.C. § 7102** (Federal Service Labor-Management Relations Statute) protects the right of employees and union representatives to furnish advice and information about personnel practices.
- Questioning him for exercising those rights violates **5 U.S.C. § 2302(b)(9)** – reprisal for assisting others in protected proceedings.

G. Procedural and Ethical Irregularities

1. **Late Notice:** Interview invite sent at 9:06 a.m. for a 9:00 a.m. meeting → denial of adequate notice and preparation; violates **due-process principles** and **5 U.S.C. § 6329b** review requirements.
2. **Conflict of Interest:** Investigator Naomi Hixson also served as **Compliance Officer** and was a recipient of the underlying compliance emails → breach of **5 C.F.R. § 2635.502(a)** and **§ 2635.101(b)(14)**.
3. **Warnings-and-Assurances Date Discrepancy:** Document dated November 15 while interview held September 25 → false record; potential **violation of 18 U.S.C. § 1001** if knowingly submitted.
4. **Denial of Access to Records:** Revoking system access before interview prevented adequate defense → violates **5 U.S.C. § 2302(b)(8)** (retaliation for disclosures) and **Fifth-Amendment due process**.

Conclusion

The September 25 interview was procedurally irregular, biased, and retaliatory.

Each category of questioning targeted protected disclosures or lawful professional activity, violating:

- **5 U.S.C. § 2302(b)(8)–(9)** – Whistleblower Protection Act
- **5 U.S.C. § 7102** – Protected union/employee advisory rights
- **5 C.F.R. § 2635.502(a)** – Conflict of interest and impartiality
- **Title VII & Rehabilitation Act** – Equal enforcement and non-retaliation
- **5 U.S.C. § 6329b** – Administrative Leave Act procedural safeguards
- **Fifth Amendment** – Due process

/s/ Kevin Dean Turnage

Date: October 6, 2025

Attachment 3 – Summary of Violations of Federal Law

Kevin Dean Turnage
OSC Case No. MA-25-004957
Date: October 6, 2025

1. Improper Extension of Investigative Leave (With Pay)

- Under the **Administrative Leave Act of 2016**, **5 U.S.C. § 6329b** and **5 C.F.R. Part 630, Subpart N**, investigative leave must be:
  - *Documented in writing,*
  - *Approved at an appropriate management level,* and
  - *Reviewed at least every 30 days* to confirm continuing necessity.
- Indefinitely extending paid investigative leave without these reviews or for retaliatory reasons violates the Administrative Leave Act and constitutes a **prohibited personnel practice** under **5 U.S.C. § 2302(b)(8) and (b)(9)**.
- Though paid leave is not a "suspension" under **5 U.S.C. § 7513(b)** (*see Perez v. DOJ, 480 F.3d 1309 (Fed. Cir. 2007)*), misuse of the status to isolate a whistleblower or damage reputation is still a retaliatory **personnel action** under **§ 2302(a)(2)(A)** and violates **due process** guarantees of the **Fifth Amendment**.

2. Conflict of Interest / Lack of Impartial Investigation

- The investigator serving as the **hospital's Compliance Officer** was **personally copied on my prior compliance reports** to CQO Clinton Pope—the very subject of my protected disclosures.
- **5 C.F.R. § 2635.502(a)** (Standards of Ethical Conduct) bars any employee from participating in a matter in which impartiality may reasonably be questioned.

- Conducting an investigation of a whistleblower about issues the investigator personally handled constitutes a **conflict of interest** and breach of **5 C.F.R. § 2635.101(b)(8), (b)(14)** (require impartiality and avoidance of appearances of bias).
- Such biased investigation violates **5 U.S.C. § 2302(b)(8)** and undermines required due process.

3. Constructive Demotion / Removal of Duties

- **5 U.S.C. § 7512(3)** and **§ 2302(a)(2)(A)(iii)** define a "reduction in grade" or "change in duties" as an appealable personnel action.
- **MSPB precedent** (*Bannister v. Dept. of Veterans Affairs*, 80 M.S.P.R. 594 (1999); *Brown v. DOJ*, 715 F.2d 662 (Fed. Cir. 1983)*) holds that removing significant duties without changing title or pay is a **constructive demotion**.
- Stripping core policy responsibilities and limiting my access to normal work functions without amending my position description violates **5 U.S.C. § 2302(b)(8)** (reprisal) and **§ 2302(b)(9)** (interference with employee rights).

4. Retaliation for Protected Disclosures

- **5 U.S.C. § 2302(b)(8)** prohibits reprisal for disclosing a violation of law, rule, or regulation, or gross mismanagement, waste, or abuse of authority.
- **5 U.S.C. § 2302(b)(9)** prohibits reprisal for cooperating with an investigation or exercising grievance/appeal rights.

- Initiating the "hostile-work-environment" investigation and repeatedly extending leave immediately after my protected compliance reports are retaliatory personnel actions under these provisions.

5. Disparate Treatment / Selective Enforcement

- **Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e-2(a)**, and the **Rehabilitation Act, 29 U.S.C. § 791(f)**, require equal treatment in discipline and conditions of employment.
- Targeting me for using personal equipment while leadership routinely uses personal cell phones for official business constitutes **selective enforcement** and evidence of **pretext** (*McDonnell Douglas Corp. v. Green, 411 U.S. 792 (1973); Cotton v. City of Alameda, 812 F.2d 1245 (9th Cir. 1987)*).

6. Due-Process and Constitutional Violations

- The **Fifth Amendment** guarantees federal employees fair notice and an unbiased decision-maker before adverse or stigmatizing actions.
- Biased investigation, indefinite investigative leave, and constructive demotion without notice or review violate procedural due process and constitute arbitrary, retaliatory government action.

Summary:

Collectively, the Agency's actions—using a conflicted Compliance Officer as investigator, improperly extending investigative leave, removing duties without position revision, and enforcing policy selectively—violate the **Administrative Leave Act (5 U.S.C. § 6329b)**, **Ethics**

Regulations (5 C.F.R. § 2635.502), **Whistleblower Protection Act (5 U.S.C. § 2302)**, **Title VII and Rehabilitation Act**, and the **Fifth Amendment**.

/s/ Kevin Dean Turnage

Date: October 6, 2025

Interview Question & Legal Violation Reference Table

Kevin Dean Turnage – OSC Case No. MA-25-004957
Interview Date: September 25, 2025
Investigators: Naomi Hixson (Compliance Officer) & Shawna Samuel

Topic / Sample Question Asked	Relevant Law(s) or Regulation(s)	Key Legal Violation / Talking Point
1. "Why did you send emails criticizing CQO Clinton Pope? Do you realize this was perceived as hostile?"	5 U.S.C. § 2302(b)(8); 29 C.F.R. § 1614.101(b); First Amendment	Reporting legal or policy violations is **protected whistleblowing**, not harassment. Retaliating for such disclosures violates the WPA.
2. "Do you understand that your tone was intimidating or inflammatory?"	5 U.S.C. § 2302(b)(8); 5 C.F.R. § 2635.101(b)(14)	Characterizing protected compliance reporting as "hostile" **chills disclosure** and breaches impartiality standards.
3. "Did you accuse leaders of violating federal law?"	5 U.S.C. § 2302(b)(8); 29 C.F.R. § 1614.101(b)	Protected disclosure of violations is explicitly covered under the WPA; questioning motive = retaliation.
4. "Why didn't you follow the chain of command?"	5 U.S.C. § 2302(b)(8)(B); Joint Commission and CMS compliance rules	The law protects disclosures **to any person**, including outside your chain. Escalation was required by compliance obligations.
5. "Did you reject assignments or refuse directives?"	5 U.S.C. § 2302(b)(8); 5 U.S.C. § 7512(3)	Any duty removal or criticism following protected disclosures = **constructive demotion** and prohibited personnel practice.
6. "Did you use your personal cell phone or personal email for work?"	Title VII (42 U.S.C. § 2000e-2(a)); 5 U.S.C. § 2302(b)(8); 44 U.S.C. § 3101 et seq. (Federal Records Act)	Leadership does the same; selective enforcement shows **disparate treatment** and retaliation. Use was lawful under records law.
7. "Did you provide ER/LR or EEO information to other employees? Were they in your chain of command?"	5 U.S.C. § 7102; 5 U.S.C. § 2302(b)(9)	Employees and union reps may **assist coworkers** with ER/LR matters. Questioning this is retaliation for helping others exercise rights.
8. "Did you violate the U.S. Code by giving advice?"	5 U.S.C. § 7102; 5 U.S.C. § 2302(b)(9)	No statute forbids giving general procedural guidance.

Topic / Sample Question Asked	Relevant Law(s) or Regulation(s)	Key Legal Violation / Talking Point
		Implying a "U.S.C. violation" is **retaliatory intimidation**.
9. "Did you identify yourself as a federal employee on GoFundMe?"	5 C.F.R. § 2635.702(a); 5 U.S.C. § 2302(b)(9)	Once ethics directed removal, you complied. Further questioning is **reprisal** after compliance.
10. "Were you aware this investigation could affect your employment?" (no notice until call)	5 U.S.C. § 6329b; 5 C.F.R. § 630.1203(b); Fifth Amendment due process	Lack of timely notice and late invite (9:06 a.m. for 9:00 a.m.) violates due-process and **Administrative Leave Act** review requirements.
11. Investigator's Role – Compliance Officer also subject of disclosures	5 C.F.R. § 2635.502(a); 5 C.F.R. § 2635.101(b)(8),(14)	Serving as investigator despite prior involvement is a **conflict of interest** and destroys impartiality.
12. "Your access was removed—do you understand why?"	5 U.S.C. § 2302(b)(8); Fifth Amendment	Denial of system access without notice = retaliatory isolation and deprivation of work property without due process.
13. "Your duties have been reassigned during leave."	5 U.S.C. § 7512(3); *Bannister v. VA*, 80 M.S.P.R. 594 (1999)	Removing significant responsibilities = **constructive demotion** and **adverse personnel action**.
14. "Investigative leave extended again—why?" (no 30-day review)	5 U.S.C. § 6329b; 5 C.F.R. § 630.1203(b); 5 U.S.C. § 2302(b)(8)	Each extension must be justified and reviewed; failure = **illegal retaliation** and procedural violation.
15. "Are you aware your disclosures caused disruption?"	5 U.S.C. § 2302(b)(8); *Whitmore v. DOL*, 680 F.3d 1353 (Fed. Cir. 2012)	WPA protects disclosures even if they cause embarrassment or disruption—**truth and good-faith** control.

Procedural Summary – September 25, 2025 "Hostile Work Environment" Interview

Kevin Dean Turnage
OSC Case No. [Insert Case Number]
Date: October 6, 2025

Purpose:

To summarize key procedural and factual irregularities associated with the Agency's September 25, 2025 interview regarding an alleged *hostile work environment* investigation.

Timeline and Irregularities

- **No Advance Notice:**

  I was **not informed of the purpose or subject** of the investigation prior to the interview.

- **Scheduling Irregularity:**

  The call was **scheduled for 9:00 a.m. on September 25, 2025**, but the **meeting invitation from the investigator was not sent until 9:06 a.m.**, after the scheduled start time.

- **No Opportunity to Prepare:**

  Because the notice was issued after the scheduled start, I had **no opportunity to review allegations, gather documents, or obtain representation** prior to questioning.

- **Subject of Interview:**

  All questions and discussion topics directly related to issues I had **previously disclosed as violations of federal law and policy by the Chief Quality Officer (CQO)**.

- **Protected Activity:**

  The conduct at issue in the interview consisted entirely of my **protected whistleblowing**

activity—raising compliance concerns, reporting policy violations, and documenting potential legal noncompliance.

- **Disparate Treatment:**

  Senior leadership engages in **identical conduct** (e.g., using personal cell phones to conduct official business) without being investigated or disciplined, indicating **selective enforcement**.

- **Retaliatory Motive:**

  The "hostile work environment" framing appears to have been used to **recast protected disclosures as misconduct**. This constitutes retaliation under **5 U.S.C. § 2302(b)(8)** and creates a chilling effect on lawful whistleblowing.

- **Investigative Leave Status:**

  My **investigative leave is scheduled to end October 9, 2025**, unless it is **illegally extended again**, which would further support evidence of ongoing reprisal.

Summary:

The Agency's handling of this interview—including lack of notice, timing of the meeting invite, and the nature of the questioning—demonstrates **procedural irregularities, retaliatory motive, and disparate treatment** tied directly to my protected disclosures. These actions constitute a **prohibited personnel practice** under the **Whistleblower Protection Act (5 U.S.C. § 2302(b)(8))**.

Prepared by:
/s/ **Kevin Dean Turnage**
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Supplemental Notice to the U.S. Office of Special Counsel

Kevin Dean Turnage
OSC Case No. MA-25-004957
Date: October 6, 2025

To:
Emily Drake, Esq.
U.S. Office of Special Counsel
1730 M Street NW, Suite 218
Washington, DC 20036-4505

Subject: Procedural Irregularities, Conflicts of Interest, and Retaliatory Conduct During the September 25, 2025 Interview and Related Agency Actions

Dear Mrs. Drake:

I respectfully submit this supplemental notice to document additional procedural and ethical violations associated with the Indian Health Service's *"hostile work environment"* interview conducted on **September 25, 2025**, and subsequent handling of my EEO and whistleblower matters.

These facts demonstrate lack of impartiality, misuse of investigatory authority, and continuing retaliation in violation of **5 U.S.C. § 2302(b)(8)–(9)** and related laws.

1. Lack of Advance Notice and Defective Scheduling

- I received **no written or verbal notice** of the interview's purpose prior to the call.
- The **meeting invitation was sent at 9:06 a.m.** for a session scheduled to begin at 9:00 a.m., preventing any meaningful preparation.
- Although the **union later stated it had agreed to the date and time**, neither the Agency nor the union notified me in advance.

- This deprived me of a reasonable opportunity to prepare and consult with my representative.
- Under **5 U.S.C. § 7114(a)(2)(B)** (*Weingarten rights*), an employee has the right to representation and adequate notice when an interview could reasonably result in discipline.
- Failure to notify me directly constitutes **interference with representation rights** and a **prohibited personnel practice** under **5 U.S.C. § 2302(b)(9)(A)** and violates **due-process** principles recognized in *Cleveland Bd. of Educ. v. Loudermill*, 470 U.S. 532 (1985).

2. Conflict of Interest — Investigator as Hospital Compliance Officer

- The assigned investigator, **Naomi Hixson**, serves as the **hospital's Compliance Officer** and was **copied on prior compliance emails** I sent to **Chief Quality Officer Clinton Pope** reporting violations of law and policy.
- Her personal involvement in the subject matter created an unavoidable **conflict of interest**, violating **5 C.F.R. § 2635.502(a)** and **§ 2635.101(b)(8),(14)** (impartiality standards).
- This conflict undermines the credibility of the investigation and evidences **retaliation disguised as compliance review**.

3. Irregular and Potentially Altered "Interview Warnings and Assurances" Form

- I **signed and dated** the Interview Warnings and Assurances form on **September 15, 2025**.

- During the September 25 interview, the investigator stated the form was **dated November 15, 2025**, a date that had not yet occurred.
- This discrepancy **may indicate that the document was altered or otherwise modified after my signature**.
- Any change to the date or content of an official investigative record without my knowledge raises serious concerns regarding the integrity of the process.
- Because the investigator also serves as the hospital's Compliance Officer—a recipient of my protected compliance emails—this irregularity further undermines impartiality and violates **5 C.F.R. § 2635.502(a)** and **§ 2635.101(b)(8),(14)** (impartiality and appearance standards).
- These circumstances support my claim that the Agency's investigative process was conducted in **bad faith and in retaliation** for protected disclosures under **5 U.S.C. § 2302(b)(8)**.

4. Subject Matter of Interview — Protected Activity Recast as Misconduct

- The questioning focused on:
    1. My alleged "hostile tone" in compliance emails;
    2. Use of personal cell phone or email; and
    3. Providing ER/LR information to other supervisors.
- Each topic directly concerns my **protected disclosures** under **5 U.S.C. § 2302(b)(8)** and my communication rights under **5 U.S.C. § 7102**.
- Re-characterizing protected whistleblowing as misconduct constitutes a **prohibited personnel practice** and misuse of investigatory authority.

5. Improper and Indefinite Investigative Leave

- My investigative leave has been repeatedly **extended without the 30-day reviews** required by the **Administrative Leave Act of 2016**, **5 U.S.C. § 6329b**, and **5 C.F.R. § 630.1203(b)**.
- Although paid leave is not a "suspension" under **5 U.S.C. § 7513(b)**, its **prolonged, retaliatory use** to isolate me constitutes a **constructive adverse action** and violates **5 U.S.C. § 2302(b)(8)** and **Fifth-Amendment due process** protections.

6. Constructive Demotion and Removal of Duties

- Following my protected disclosures, my **hospital-policy and administrative duties** were removed without revision of my position description.
- This constitutes a **"reduction in grade"** or **constructive demotion** under **5 U.S.C. § 7512(3)** and *Brown v. DOJ*, 715 F.2d 662 (Fed. Cir. 1983).
- Such retaliatory reassignment violates **5 U.S.C. § 2302(b)(8)** and (b)(9).

7. Disparate Treatment and Selective Enforcement

- Senior leadership, including the CEO and CQO, routinely conduct official business on personal cell phones without scrutiny.
- Investigating only my conduct constitutes **unequal enforcement** and **evidence of pretext**, violating **Title VII, 42 U.S.C. § 2000e-2(a)** and the **Whistleblower Protection Act**.

8. Chilling Effect and Institutional Retaliation

- The Agency's actions send a clear message that reporting compliance concerns leads to investigation and isolation.
- This "chilling effect" violates **5 U.S.C. § 2302(b)(8)** and (b)(9)**,** as recognized in *Whitmore v. DOL*, 680 F.3d 1353 (Fed. Cir. 2012).

9. Misrepresentation and Omission of Evidence in the EEOC Report of Investigation (ROI)

- Upon reviewing the Agency's **EEOC Report of Investigation**, I found that it **omits key evidence** and **mischaracterizes material facts** that are clearly documented in contemporaneous emails, affidavits, and witness statements already in the Agency's possession.
- These inaccuracies are **verifiable and not based on conjecture**.
- Deliberately excluding or distorting relevant evidence violates **29 C.F.R. § 1614.108(b)** (requiring an impartial and appropriate investigation) and **5 C.F.R. § 2635.101(b)(11)** (employees shall not knowingly make false or misleading statements).
- Such conduct constitutes a **prohibited personnel practice** under **5 U.S.C. § 2302(b)(9)(A)** for interfering with or retaliating against participation in a protected EEO process.
- To the extent the ROI contains inaccurate or incomplete information, it also implicates **18 U.S.C. § 1001** (false statements within federal proceedings) and further demonstrates the Agency's pattern of retaliatory and bad-faith investigation.

10. Request for Action

I respectfully request that OSC incorporate these procedural and ethical violations into its ongoing investigation and direct the Agency to:

1. Produce all documentation concerning scheduling and dating of the interview;
2. Identify who authorized the Compliance Officer to act as investigator;
3. Provide justification and review records for continued investigative leave; and
4. Provide a complete and unaltered copy of the **EEOC ROI** including all exhibits and drafts, and identify any official who modified or approved it.

These actions reflect systemic retaliation, misuse of investigatory authority, and deprivation of rights protected under **5 U.S.C. § 2302(b)(8)–(9)**, **5 U.S.C. § 7114(a)(2)(B)**, **5 C.F.R. § 2635.502**, **29 C.F.R. § 1614.108**, and the **Fifth Amendment**.

Respectfully,

/s/ Kevin D. Turnage

Kevin D. Turnage
1003 E Pinto Ct
Gilbert, AZ 85296
(901) 220-8664
kdturnage@protonmail.com

Timeline of Administrative and Investigative Leave Actions

Kevin D. Turnage

Date: October 6, 2025

Purpose

To summarize the timeline and procedural irregularities associated with the Agency's placement of Plaintiff on Administrative and Investigative Leave in connection with a retaliatory *"hostile work environment"* investigation.

Timeline of Leave Actions

Date	Action Taken	Duration	Notes / Legal Compliance
June 27, 2025	Placed on **Administrative Leave**	10 days	No prior notice of alleged misconduct; no written justification provided.
July 14, 2025	Converted to **Investigative Leave**	30 days (through August 13, 2025)	Investigative Leave authorized under 5 U.S.C. § 6329b(a)(1). No written justification or review provided as required by 5 C.F.R. § 630.1504.
August 26, 2025	**Extended Investigative Leave** for additional **31 days** (through October 9, 2025)	31 days	**Extension exceeded 30-day legal maximum** under 5 U.S.C. § 6329b(b). **No written review, justification, or supervisory approval** completed as required under 5 C.F.R. § 630.1505–1506.
October 9, 2025	Scheduled end of Investigative Leave	—	Any further extension without documented justification would constitute an **unlawful extension** in violation of 5 U.S.C. § 6329b(b)(2).

Summary of Violations

- **Lack of Written Justification:**
  No written justification or supervisory review was completed prior to extending Investigative Leave as required by **5 C.F.R. § 630.1506(a)**.
- **Improper Duration:**
  The Agency extended the leave **beyond the 30-day statutory limit**, without authority under **5 U.S.C. § 6329b(b)**.
- **Procedural Retaliation:**
  The timing and pattern of leave actions directly correlate with Plaintiff's **protected disclosures** under **5 U.S.C. § 2302(b)(8)**, demonstrating retaliatory motive and pretextual use of Investigative Leave.
- **Due Process Concerns:**
  Plaintiff was not given advance written notice, explanation of allegations, or an

opportunity to respond before being placed on or extended in Investigative Leave, violating procedural fairness standards.

Applicable Legal Authority

- **5 U.S.C. § 6329b** – Administrative Leave Act of 2016
- **5 C.F.R. §§ 630.1504–630.1506** – Requirements for Use and Extension of Investigative Leave
- **5 U.S.C. § 2302(b)(8)** – Prohibited Personnel Practices (Whistleblower Retaliation)

Prepared by:
/s/ **Kevin D. Turnage**
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Gilbert, AZ 85296
(901) 220-8664
kdturnage@protonmail.com

Subject: Update: Retaliatory Investigation and Disparate Treatment Following Protected Disclosures – OSC Case MA-25-004957

From kdturnage@protonmail.com <kdturnage@protonmail.com>

To Drake, Emily<EDrake@osc.gov>

Date Monday, October 6th, 2025 at 5:47 PM

Dear Mrs. Drake,

Please find attached my **Supplemental Notice and supporting documentation** for inclusion in **OSC Case No. MA-25-004957**. These materials provide expanded evidence of **retaliation, procedural violations, and misuse of investigatory authority** by senior Indian Health Service officials at the Phoenix Indian Medical Center (PIMC).

The attached materials collectively establish:

- Procedural irregularities during the September 25, 2025 "hostile work environment" interview, including lack of advance notice, post-start invitation issuance, and denial of opportunity to prepare;
- Improper extension of investigative leave beyond the limits of **5 U.S.C. § 6329b** without the required written justification or 30-day supervisory review;
- Conflicts of interest by **Naomi Hixson**, who acted as investigator while serving as Compliance Officer and direct recipient of my protected disclosures;
- Retaliation and selective enforcement by **Debra Louise Ward Lund (CEO)**, **Kathy Dill (COO)**, **Clinton Pope (CQO)**, and **Naomi Hixson (Compliance Officer)** in violation of **5 U.S.C. § 2302(b)(8)–(9)** and **Title VII**; and
- Continuing due-process deficiencies related to my investigative-leave status.

Request for Disciplinary Action under 5 U.S.C. § 1215

Pursuant to **5 U.S.C. § 1215**, I respectfully **request that the Office of Special Counsel initiate disciplinary proceedings** against the above-named officials for committing **prohibited personnel practices** and knowingly retaliating against a federal whistleblower.

The evidence attached demonstrates a sustained pattern of bad-faith conduct and abuse of authority by these officials, undertaken in reprisal for my protected disclosures regarding violations of federal law, policy, and compliance standards. I request that OSC pursue appropriate disciplinary measures, including suspension, removal, or other corrective action, consistent with **§ 1215(b)** and related authorities.

Referral to HHS Office of Inspector General

In parallel, I will be submitting a **retaliation and misconduct complaint** to the **HHS Office of Inspector General** concerning these same officials. The OIG should be informed that these acts were undertaken in **bad faith**, with full knowledge of my protected whistleblower status, and in violation of both the **Whistleblower Protection Act** and the **Administrative Leave Act of 2016**.

Please confirm receipt of these materials. I appreciate your continued diligence and commitment to protecting the integrity of the federal whistleblower process.

Attachments:

1. Supplemental Notice to the U.S. Office of Special Counsel (Oct 6 2025)
2. Attachment 1 – Legal Summary of Protections
3. Procedural Summary – September 25 Interview
4. Attachment 2 – Expanded Interview Summary and Legal Analysis
5. Attachment 3 – Summary of Violations of Federal Law
6. Interview Question & Legal Violation Reference Table
7. Administrative Inquiry Invitation

Respectfully,

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📧 kdturnage@protonmail.com *(Encrypted Email)*
📞 901-220-8664
🔑 PGP Fingerprint: `CDB6 543B 51C2 056B 5333 CECE 4C44 C5E3 7A30 4FF6`

Sent with Proton Mail secure email.

1.13 MB 7 files attached

Attachment 1 Legal Summary of Protections.pdf 123.60 KB

Attachment 2 – Expanded Interview Summary and Legal Analysis.pdf 178.92 KB

Attachment 3 – Summary of Violations of Federal Law.pdf 219.62 KB

Procedural Summary – September 25, 2025 “Hostile Work Environment” Interview.pdf 160.74 KB

Supplemental Notice to the U.S. Office of Special Counsel.pdf 201.16 KB

Administrative Inquiry Invite.pdf 108.38 KB

Interview Question & Legal Violation Reference Table.pdf 166.19 KB

Administrative Inquiry Interview

From Naomi H. (IHS/PHX) <Naomi.Hixson@ihs.gov> Yesterday

To kdturnage@protonmail.com

Thursday, September 25th, 2025 at 9:06 AM

Event already ended

Administrative Inquiry Interview

Thu, Sep 25, 2025, 9:00 AM – 11:00 AM

Open in Proton Calendar

Attending? Yes Maybe No

My calendar

Microsoft Teams Meeting

Organizer: Naomi H. (IHS/PHX) <Naomi.Hixson@ihs.gov>

4 participants Show

Scheduled in collaboration with Mr. Jeff Hemp

Microsoft Teams Need help?

Join the meeting now

Meeting ID: 268 313 924 697 5

Passcode: gG6a3dq3

Dial in by phone

+1 301-228-0167,,565689945# United States, Frederick

+1 505-456-4658,,565689945# United States, Albuquerque

Find a local number

Phone conference ID: 565 689 945#

For organizers: Meeting options | Reset dial-in PIN

4.11 KB 1 file attached

calendar.ics 4.11 KB

U.S. OFFICE OF SPECIAL COUNSEL
1730 M Street, N.W., Suite 300
Washington, D.C. 20036-4505

The Special Counsel

March 5, 2019

The President
The White House
Washington, D.C. 20500

Re: OSC File No. DI-16-2511

Dear Mr. President:

I am forwarding a report from the Department of Veterans Affairs (VA) based on disclosures of wrongdoing at the Memphis VA Medical Center (Memphis VAMC). The allegations were provided by Mr. Kevin Turnage, a staff nurse in the Care Coordination Unit, who alleged that the Memphis VAMC Neurology Clinic improperly cancelled approximately 150 electromyography (EMG) tests at the direction of management and that these patients had waited on average more than 6 months for care. Mr. Turnage asserted that the EMG tests were improperly cancelled to circumvent VA performance management measurements.[1]

The investigation partially substantiated Mr. Turnage's allegations, finding that Memphis VAMC staff did not follow appropriate procedures when they discontinued a backlog of 143 EMG clinic consults for 140 veterans. The agency did not conclude that the cancellations were ordered to disguise patient wait times. Instead, the cancellations were a method to enroll patients in VA's Choice program where they faced shorter wait times.

In response to the investigation's findings, the agency carried out several corrective actions. These included ensuring that Neurology Clinic staff schedule patients in accordance with VA procedures, hiring additional staff to work in the Neurology Clinic and the Memphis VAMC Business Office, and training an employee who displayed particular difficulty in following proper procedures.

Mr. Turnage's comments disputed the conclusion that the EMG tests were not cancelled to disguise wait times. He called attention to the timing of the cancellations, noting that they occurred shortly after a business meeting where long wait times were discussed by managers. In addition, Mr. Turnage highlighted the excessive wait times

[1] Mr. Turnage's allegations were referred to former Secretary of Veterans Affairs Robert McDonald for investigation pursuant to 5 U.S.C. § 1213(c) and (d). VA's Office of Inspector General conducted the investigation. Former Chief of Staff Vivieca Wright Simpson reviewed and signed the report.

patients were subject to, on average 169 days for care, with the longest waits stretching beyond 250 days.

I have reviewed the original disclosure, the agency report, and Mr. Turnage's comments. Based on the investigation, it appears that Mr. Turnage identified serious problems in the scheduling and patient access to care. However, in response to this referral, the facility is now taking these problems seriously and carrying out more fulsome measures to ensure patients are receiving appropriate and timely access to care.

For these reasons, I have determined that the report meets the statutory requirements and the findings appear reasonable. As required by 5 U.S.C. § 1213(e)(3), I have sent a copy of this letter, the agency report, and the whistleblower's comments to the Chairmen and Ranking Members of the Senate and House Committees on Veterans' Affairs. I have also filed redacted copies of these documents and the referral letter in our public file which is available at www.osc.gov. This matter is now closed.

Respectfully,

Henry J. Kerner
Special Counsel

Enclosures